

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Asencio	Team: Team # 1	CCRB Case #: 201110586	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 08/01/2011 6:55 PM	Location of Incident: § 87(2)(b) Hegeman Avenue and Shepherd Avenue, 75th Precinct stationhouse	18 Mo. SOL 2/1/2013	Precinct: 75
Date/Time CV Reported Fri, 08/12/2011 12:07 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/12/2011 12:07 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Dennis Friendly	02755	930185	NARCBBN
2. Officers			NARCBBN
3. DT3 Ronald Reynolds	05746	937368	NARCBBN
4. DT3 Jason Cohen	01750	923429	NARCBBN
5. POM Sean Finnegan	14095	943238	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael White	04207	907749	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Dennis Friendly	Force: Vicinity of § 87(2)(b) in Brooklyn, Det. Dennis Friendly struck § 87(2)(b) with a blunt instrument.	A . Unsubstantiated
B . DT3 Ronald Reynolds	Abuse: Vicinity of § 87(2)(b) in Brooklyn, Det. Ronald Reynolds stopped § 87(2)(b)	B . Alleged Victim Unavailable
C . DT3 Ronald Reynolds	Abuse: Vicinity of § 87(2)(b) in Brooklyn, Det. Ronald Reynolds frisked § 87(2)(b)	C . Alleged Victim Unavailable

Officer(s)	Allegation	Investigator Recommendation
D . DT3 Ronald Reynolds	Discourtesy: At § 87(2)(b) in Brooklyn, Det. Ronald Reynolds spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Sean Finnegan	Discourtesy: At § 87(2)(b) in Brooklyn, PO Sean Finnegan spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . DT3 Dennis Friendly	Discourtesy: At § 87(2)(b) in Brooklyn, Det. Dennis Friendly spoke discourteously to § 87(2)(b) and to an individual.	F . Unsubstantiated
G . DT3 Dennis Friendly	Force: At § 87(2)(b) in Brooklyn, Det. Dennis Friendly used physical force against § 87(2)(b)	G . Unsubstantiated
H . Officers	Force: At § 87(2)(b) in Brooklyn, officers used physical force against an individual.	H . Victim Unidentified
I . POM Sean Finnegan	Off. Language: At Hegeman Avenue and Shepherd Avenue in Brooklyn, PO Sean Finnegan made remarks to § 87(2)(b) based upon race.	I . Unsubstantiated
J . DT3 Jason Cohen	Off. Language: At Hegeman Avenue and Shepherd Avenue in Brooklyn, Det. Jason Cohen made remarks to § 87(2)(b) based upon race.	J . Unsubstantiated
K . DT3 Dennis Friendly	Abuse: At the 75th Precinct stationhouse, Det. Dennis Friendly threatened an individual with the use of force.	K . Victim Unidentified

Case Summary

§ 87(2)(b) filed this complaint with the CCRB by phone on August 12, 2011 (encl. 4a-4d).

§ 87(2)(b) also filed a complaint in regards to the same incident (encl. 5a-5e).

On August 1, 2011, at approximately 6:55pm, Sgt. Michael White, Det. Dennis Friendly, Det. Ronald Reynolds, Det. Jason Cohen, and PO Sean Finnegan, all from Narcotics Borough Brooklyn North, arrested sixteen people, including § 87(2)(b) and § 87(2)(b) in the vicinity of § 87(2)(b) in Brooklyn. The following allegations resulted from the encounter:

Allegation A: Vicinity of § 87(2)(b) in Brooklyn, Det. Dennis Friendly struck § 87(2)(b) with a blunt instrument.

§ 87(2)(b), § 87(2)(g)

Allegation B: Vicinity of § 87(2)(b) in Brooklyn, Det. Ronald Reynolds stopped

§ 87(2)(b)

Allegation C: Vicinity of § 87(2)(b) in Brooklyn, Det. Ronald Reynolds frisked

§ 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation D: At § 87(2)(b) in Brooklyn, Det. Ronald Reynolds spoke discourteously to § 87(2)(b)

Allegation E: At § 87(2)(b) in Brooklyn, PO Sean Finnegan spoke discourteously to § 87(2)(b)

Allegation F: At § 87(2)(b) in Brooklyn, Det. Dennis Friendly spoke discourteously to § 87(2)(b) and to an individual.

§ 87(2)(b), § 87(2)(g)

Allegation G: At § 87(2)(b) in Brooklyn, Det. Dennis Friendly used physical force against § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation H: At § 87(2)(b) in Brooklyn, officers used physical force against an individual.

Allegation K: At the 75th Precinct stationhouse, Det. Dennis Friendly threatened to use force against an individual.

§ 87(2)(g)

Allegation I: At Hegeman Avenue and Shepherd Avenue in Brooklyn, PO Sean Finnegan made remarks to § 87(2)(b) based upon race.

Allegation J: At Hegeman Avenue and Shepherd Avenue in Brooklyn, Det. Jason Cohen made remarks to § 87(2)(b) based upon race.

§ 87(2)(b), § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, who is 5'9", weighs 155 pounds, has black hair and brown eyes.

Arrest Photograph

A search for § 87(2)(b)'s arrest photograph yielded negative results (encl.27a).

CCRB Testimony

§ 87(2)(b) provided a statement to the CCRB on November 7, 2011 (encl.6b-6d). His statement was generally consistent with his initial CCRB narrative (encl. 4c) and with his CCRB phone statement (encl. 6a) with inconsistencies noted in the text.

On August 1, 2011, at approximately 6:55pm, § 87(2)(b) who wore blue jeans and had shirt off, was walking on New Lots Avenue in Brooklyn toward § 87(2)(b). § 87(2)(b) stopped at a store, located at the corner of New Lots Avenue and Ashford Street, to buy Gatorade. § 87(2)(b) purchased the Gatorade and a pack of cigarettes. § 87(2)(b) was approximately in the store for a few minutes. Prior to walking on New Lots Avenue, § 87(2)(b) had left his friend, Mike's apartment building, located at Hegeman Avenue. § 87(2)(b) did not know Mike's last name and he did not know what time he left Mike's apartment. When § 87(2)(b) left Mike's apartment, he left alone and carried nothing in his hands except his shirt that he had taken off.

From the store, § 87(2)(b) continued to walk on New Lots Avenue heading toward § 87(2)(b). As § 87(2)(b) was walking from New Lots Avenue heading toward Berriman Street, and as he approached Essex Street, he crossed over to the other side of the street. § 87(2)(b) crossed to the opposite side of the street because he saw police activity and wanted to get out of their way. There were six-to-eight plainclothes officers present at the location with gray, burgundy, and white vehicles, including a van. As § 87(2)(b) approached the area of where the police officers were, he saw that they were looking for someone not wearing a shirt and saw the officers looking into a lot. PO1 (an unidentified tall white male with blond hair) said, "There goes § 87(2)(b). As § 87(2)(b) walked, Det. Dennis Friendly from Narcotics Borough Brooklyn North, a black male in his 30s standing at 5'6", who was standing by the lot located on New Lots Avenue between Berriman Street and Shepherd Avenue, ran across the street.

Det. Friendly stood in front of § 87(2)(b) and told him, "Put your hands up and behind your back." § 87(2)(b) told Det. Friendly, "What are you talking about? Put my hands behind my back. I didn't do anything wrong." Det. Friendly grabbed § 87(2)(b) from the front in a bear hug around his arms and § 87(2)(b) told Det. Friendly, "I'm not resisting arrest. I'm not doing anything wrong. Why are you so aggressive?" Det. Friendly told § 87(2)(b) "Shut up." § 87(2)(b)

§ 87(2)(b) did not resist. § 87(2)(b) asked Det. Friendly, “What is your probable cause to approach me in this manner?” Det. Friendly told § 87(2)(b) “I can do what I want because I have a badge.” Det. Friendly took his handcuffs and a second pair of handcuffs and hit § 87(2)(b) in the mouth with the handcuffs. § 87(2)(b) asked Det. Friendly, “What was that for? I’m not resisting arrest. I’m not doing anything. I’m cooperating. I’m doing everything as I’m being told.” Det. Friendly handcuffed § 87(2)(b) and hauled him into a van.

Later in the interview, § 87(2)(b) stated that Det. Friendly handcuffed him and then took a “sweat rag” or square towel and put another pair of handcuffs in between it and swung it at § 87(2)(b) hitting him by the base of his eye and nose. § 87(2)(b) sustained swelling as a result. § 87(2)(b) did not see where Det. Friendly took the other set of handcuffs out. Det. Friendly escorted § 87(2)(b) to the van and threw him in. § 87(2)(b) clarified that he had to jump into the van. Then, § 87(2)(b) stated that he was rammed and slammed against the step-up bar of the van and his abdomen made contact. He then stated that he was rammed against the bumper of the van and he fell over it. § 87(2)(b) received no injuries as a result. Det. Friendly started laughing at § 87(2)(b) was picked up and put in the van. § 87(2)(b) was taken to the 75th Precinct stationhouse and he was charged with possession of a crack pipe. § 87(2)(b) did not go to the hospital in regards to his injuries because it was not severe.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a forty-nine-year-old black male, who is 5’5”, weighs 158 pounds, has brown hair and brown eyes.

Arrest Photograph

§ 87(2)(b)’s arrest photograph shows no visible injuries (encl. 7a).

CCRB Testimony

§ 87(2)(b) provided a statement to the CCRB at § 87(2)(b) on October 3, 2011 (encl. 7b-7e). His statement was generally consistent with his initial complaint narrative (encl. 5c-5e) with inconsistencies noted in the text.

On August 1, 2011, at approximately 4:30pm-5:30pm, § 87(2)(b) was exiting a store, located at the corner of Atkins Avenue and New Lots Avenue in Brooklyn, when he saw his friend, § 87(2)(b). § 87(2)(b) did not know § 87(2)(b)’s address or phone number. § 87(2)(b) carried a closed can of beer in the brown paper bag in his hand and an unused writing pen in a brown paper bag in his right front pocket of his shorts. § 87(2)(b) and § 87(2)(b) walked toward § 87(2)(b) a known drug location. § 87(2)(b) and § 87(2)(b) did not enter § 87(2)(b) but § 87(2)(b) had stopped to speak to an unidentified black female that was sitting on the stairs outside of the house. § 87(2)(b) did not know this woman. As § 87(2)(b) spoke to this woman, § 87(2)(b) observed a white van, parked at the location at the corner of Berriman Street and New Lots Avenue as if to watch the house. At the time that § 87(2)(b) was speaking to the woman, he and § 87(2)(b) did not have any physical contact with her.

After they had spoken to the woman and continued to walk on New Lots Avenue, the white van drove by them. The officers then drove back to their location and stopped § 87(2)(b) and § 87(2)(b) approximately three houses down from § 87(2)(b). PO Sean Finnegan from Narcotics Borough Brooklyn North, a white male plainclothes officer about 6’5” with short blond hair in his 30s, identified via investigation, and Det. Ronald Reynolds from Narcotics Borough Brooklyn North, a white male about 5’8” with blond hair in his 30s, identified by name as Det.

Ronald Reynolds by § 87(2)(b) since he observed him at the stationhouse filing out paperwork, were inside the van.

Det. Reynolds exited the passenger side of the van and said to § 87(2)(b) and § 87(2)(b) “You two. Where are you all going? What are you all doing?” § 87(2)(b) and § 87(2)(b) were asked for their identification and were asked if the beer can was open. § 87(2)(b) handed Det. Reynolds the beer and told him that the beer was closed. § 87(2)(b) asked, “What is the problem?” Det. Reynolds asked, “What do you all have in your pockets?” Det. Reynolds asked § 87(2)(b) and § 87(2)(b) “Do you have anything in your pocket that you are not supposed to have? You let me know now.” § 87(2)(b) and § 87(2)(b) told him, “No, everything in our pockets is everything we are supposed to have.” § 87(2)(b) asked Det. Reynolds, “What you going to do? Arrest us? What is the problem officer? We were just walking past the block to visit a friend’s house.” Det. Reynolds told § 87(2)(b) and § 87(2)(b) “We are going to go through your pockets.”

Det. Reynolds searched § 87(2)(b) but § 87(2)(b) did not see Det. Reynolds place his hands into § 87(2)(b)’s pockets. He observed Det. Reynolds patting down § 87(2)(b)’s back and front pants pockets. At this point, PO Finnegan exited the van, approached § 87(2)(b) and asked him, “Guy, what do you got? Do you have anything on you?” § 87(2)(b) told him that he had a closed can of beer. PO Finnegan asked § 87(2)(b) “Do you have anything in your pockets?” § 87(2)(b) responded, “Yeah, I got my wallet. I got a pen in here in my pocket.” Earlier in the interview, § 87(2)(b) stated that he told the officer that the pen was in a paper bag. PO Finnegan told § 87(2)(b) “I’m going into your pocket and I’m taking the stuff out of your pocket.” PO Finnegan asked, “Is there anything that is going to cut me?” § 87(2)(b) responded, “No, I don’t have no weapons or nothing like that.” PO Finnegan went into § 87(2)(b) pocket and removed the brown paper bag. PO Finnegan told § 87(2)(b) to turn around and removed his wallet. Earlier in the interview, § 87(2)(b) stated that he handed § 87(2)(b) the can of beer and told PO Finnegan, “Go ahead. Go through my pockets.”

After PO Finnegan removed the pen and wallet from § 87(2)(b) pockets, he looked through the wallet and then gave it back to § 87(2)(b). PO Finnegan held the brown paper bag and waited for Det. Reynolds to finish with § 87(2)(b). Det. Reynolds told § 87(2)(b) to “take a walk.” Det. Reynolds asked PO Finnegan, “What are you going to do?” PO Finnegan responded, “He has this (referring to the pen in the brown paper bag).” PO Finnegan asked Det. Reynolds what they should do in regards to the pen. Det. Reynolds told PO Finnegan, “This is what they use for crack pipes.” PO Finnegan said, “Come on, man. This is nothing. This is your call.” Later in the interview, § 87(2)(b) stated that PO Finnegan told Det. Reynolds that he was going to let § 87(2)(b) go. Det. Reynolds responded, “Lock him up.”

PO Finnegan instructed § 87(2)(b) to turn around and place his hands behind his back. Det. Reynolds handcuffed § 87(2)(b). § 87(2)(b) did not resist when he was being placed in handcuffs by flailing his arms, moving his arms, or kicking at the officers. PO Finnegan and Det. Reynolds escorted § 87(2)(b) to the back of the police van that was parked in the middle of the street, toward the side of the street. When the officers opened the back doors of the van, § 87(2)(b) observed approximately eight or nine male prisoners in the back of the van. § 87(2)(b) told Det. Reynolds and PO Finnegan, “Listen, it’s crowded in the back of that van.” The officers responded, “I don’t give a shit. Just get in there. Find somewhere. Sit on somebody’s lap.” Later in the interview, § 87(2)(b) stated that he was told by the officers, “I don’t give a shit” later in the incident. In initial written complaint, § 87(2)(b) did not mention the discourtesy. The officers

placed him up on the step of the van, shoved him into the van, and closed the door. Approximately fifteen minutes later, the officers opened the van doors again since they had another prisoner, § 87(2)(b) obtained § 87(2)(b)'s first name in the holding cell. § 87(2)(b) told the officers, "There is no room in here." The officers told § 87(2)(b) "Get the hell in there, man." The officers placed § 87(2)(b) on the step on the van and Det. Reynolds pushed him into the van. After the officers placed § 87(2)(b) inside of the van, they closed the doors.

The police van drove to another location and opened the doors of the van at § 87(2)(b). Besides PO Finnegan and Det. Reynolds, § 87(2)(b) observed Det. Dennis Friendly, a black male standing at 6' weighting 240 pounds, and Sgt. Michael White, a tall muscular black male with glasses, identified via investigation. § 87(2)(b) obtained Det. Friendly's name at the stationhouse since he also completed arrest paperwork.

§ 87(2)(b) observed an unidentified individual (a forty-seven-year-old black male standing at 6'4" with glasses) "fussing" with the officers and told them, "What did I do, officers? Why are you locking me up? Don't do this to me." Det. Reynolds and Sgt. White were trying to handcuff the individual, but he was resisting by turning his body around so that the officers could not handcuff him. The individual was moving his arms away from the officers and turned to face the officers as they tried to handcuff him. The officers subdued him and threw him to the ground. However, when the individual was thrown on the ground, he was thrown on the opposite side of the van on the sidewalk, that § 87(2)(b) did not see what was happening afterwards, but heard the individual say, "Yo, get off of me. Why you all doing this to me?" Det. Friendly told the individual, "Motherfucker, you are getting in the van." During this time, there were two other prisoners, including § 87(2)(b) and a bald-headed male, who were going to be placed in the van. § 87(2)(b) stated that he knows § 87(2)(b) because they were placed in the same holding cell together. § 87(2)(b) and the bald-headed prisoner told the other prisoners in the van that the individual was punched.

The officers told § 87(2)(b) to exit the van to rearrange and make room. § 87(2)(b) placed his legs out of the van and Det. Friendly grabbed his forearms and pulled him out of the van. When he was out of the van, Det. Friendly snatched him out of the van and threw § 87(2)(b) up against the van. Det. Friendly stated, "You all are going into this van. I don't give a shit" and threw § 87(2)(b) up against the door of the van. § 87(2)(b) received a bruise on his left cheek. Later, § 87(2)(b) stated that Det. Friendly stated, "You all are going into this fucking van. I don't care."

Sgt. White, Det. Reynolds, and PO Finnegan threw § 87(2)(b) and the bald-headed individual into the van. Det. Friendly shoved § 87(2)(b) and squeezed him into the van. § 87(2)(b) was then pushed down. The individual did not want to get into the van. Sgt. White, Det. Reynolds, and Det. Friendly forced and threw the individual into the van. Earlier in the interview, § 87(2)(b) stated that Sgt. White, Det. Reynolds, and PO Finnegan threw § 87(2)(b) the individual, and the bald-headed male into the van. § 87(2)(b) and the bald-headed individual sat on the floor. At another point in the interview, § 87(2)(b) stated the individual was brought into the van and told the officers, "I didn't do anything. Why are you locking me up?" The officers were trying to push him into the van with more people, but the officers pulled the individual first out of the van, and "whooped" on him. At the same time, Det. Friendly grabbed § 87(2)(b) by his handcuffs and told him, "You too. You get the hell out. You all complaining about it's too tight" and smacked him on his head, threw him up against the van, and told him, "Stay there." During this time, the

officers were beating the individual on the sidewalk in front of people walking by. After that, the officers threw them back in the van.

Once everyone was inside of the van, the officers closed the doors. Inside the van, the individual told the prisoners that Det. Friendly punched him in the face. He mentioned that he was subdued and placed in handcuffs. § 87(2)(b) observed injuries on the individual and saw him bleeding from the right side of his cheek. He also saw him bleeding from his lip. § 87(2)(b) did not see cuts or bruises on him.

At the 75th Precinct stationhouse, all thirteen prisoners were placed in a holding cell together. In the cell, the individual kept saying that Det. Friendly had punched him, that he was not supposed to be there, and that he wanted to talk to Det. Friendly. Det. Friendly entered the holding cell area to ask PO Finnegan, who was fingerprinting prisoners, a question. The individual asked Det. Friendly something and Det. Friendly told him, “Yeah, you keep running your mouth. I’m going to take you out of that pen and whoop your ass again.” No other officers were present. Det. Friendly also told the prisoners that he was going to take them out of the pen if they do not stop complaining. Det. Friendly told the individual, “This motherfucker keeps talking.” Det. Friendly stated in general, “If all of you would shut the fuck up, we could process you and get you out. If you all keep talking, I’m going to crack that pen and bring you all out and whoop your ass.” However, § 87(2)(b) assumed Det. Friendly made the statement to the individual since he was crying. Earlier in the interview, § 87(2)(b) stated that Det. Friendly was being “cocky” and pulling guys out of the holding cell and smacking them. The individual asked Det. Friendly to go to the hospital. Det. Friendly responded, “If you go and get medical treatment you are not going to get processed, and if we got to take you and sit in a hospital, you are going to pay for it.” § 87(2)(b) was charged with drug paraphernalia and drug residue.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) year-old black male, who is 6’1”, weighs 220 pounds, has black hair and brown eyes. At the time of the interview, § 87(2)(b) worked as a security guard.

Arrest Photograph

§ 87(2)(b) s arrest photograph shows no visible injuries (encl. 8a).

CCRB Testimony

§ 87(2)(b) provided a statement to the CCRB on November 7, 2011 (encl. 8b-8d).

On August 1, 2011, at approximately 6:20pm, § 87(2)(b) woke up and used the bathroom inside his residence, located at § 87(2)(b) in Brooklyn. § 87(2)(b) had five visitors, § 87(2)(b), “§ 87(2)(b)” “§ 87(2)(b)” (whose last names are unknown), § 87(2)(b) and “§ 87(2)(b)” § 87(2)(b) who had arrived in the afternoon to his residence for his birthday. § 87(2)(b) did not know what time his visitors arrived because he was asleep.

When § 87(2)(b) exited the bathroom, he saw his visitors in the kitchen socializing. Since the weather was hot, § 87(2)(b) went to the porch. § 87(2)(b) was on his porch for approximately two-to-three minutes before his friend § 87(2)(b) whose last name is unknown, stopped in front of the house. § 87(2)(b) stood on the sidewalk on the outskirts of his fence. § 87(2)(b) told § 87(2)(b) who remained on the porch, that he had been stopped by police a few minutes ago on the corner of Atkins Avenue and New Lots Avenue. § 87(2)(b) was with a friend (who § 87(2)(b) does not know the name of) that was carrying a water or “something” and was placed under arrest. § 87(2)(b) told § 87(2)(b) that the officers let him go. § 87(2)(b) told § 87(2)(b) “Be careful. Dirty deeds (meaning

Detectives) is out.” § 87(2)(b) then kept walking. § 87(2)(b) denied that he and § 87(2)(b) had physical contact with each other. While he was outside he observed a white van parked approximately three doors down. § 87(2)(b) did not say anything about the van.

§ 87(2)(b) turned his back and started walking into the house. § 87(2)(b) grabbed the gate and shut it. The gate is on the porch and is connected to the front door. § 87(2)(b) locked the gate. As § 87(2)(b) went to grab the front door to close it, Det. Friendly, a § 87(2)(b)-old black male standing at 6’0”, identified by § 87(2)(b) when another prisoner in the holding cell told him Det. Friendly’s name, ran up on the porch, grabbed the gate (which was already locked), and shook the gate. § 87(2)(b) did not hear Det. Friendly running up the steps, but when he looked up he saw Det. Friendly already running up the stairs, running toward him. § 87(2)(b) was surprised and so he backed away from the gate because Det. Friendly stuck his hand out to try to reach § 87(2)(b). § 87(2)(b) stepped back and asked Det. Friendly, “Who are you?” Det. Friendly stated, “Don’t worry about it. You’ll see.” § 87(2)(b) shut the front door because he thought Det. Friendly was a “mugger” who was trying to rob him.

When § 87(2)(b) came into the house, he immediately entered his first floor apartment and closed the door and locked it. § 87(2)(b) went into his room and got dressed. § 87(2)(b) immediately came back outside the house using the same door because he wanted to know who Det. Friendly was since he felt threatened. Once § 87(2)(b) was outside the house, he saw no one. § 87(2)(b) walked to the corner of Shepherd Avenue and New Lots Avenue and saw no one. § 87(2)(b) was looking for Det. Friendly. § 87(2)(b) made a left and walked straight down on Shepherd Avenue all the way to Hegeman Avenue. Once at Hegeman Avenue and Shepherd Avenue, § 87(2)(b) crossed Shepherd Avenue. § 87(2)(b) still had not seen anyone. § 87(2)(b) denied that he spoke to anyone or stop at any location while on his search.

Once § 87(2)(b) crossed Shepherd Avenue, out of nowhere three unmarked police vehicles arrived at the location. At first, a white van pulled up. A light blue Kia minivan pulled up second, and a green Altima with tinted windows pulled up third. PO Sean Finnegan, a white male with black hair standing at 6’7”, weighting 300 pounds, identified by § 87(2)(b) after he asked for PO Finnegan’s name and he provided the information, and Det. Jason Cohen, a stocky white male with a bald head standing at 5’9”, identified via investigation, were inside of the van.

PO Finnegan and Det. Cohen exited the van and approached § 87(2)(b). Det. Cohen told § 87(2)(b) “You know what you did. Put your hands behind your back.” § 87(2)(b) asked the officers, “What am I being arrested for?” § 87(2)(b) was told, “You know what you did.” No officer explained what they meant by the statement. § 87(2)(b) was placed in handcuffs. § 87(2)(b) kept asking the officers what he was being placed under arrest for. PO Finnegan grabbed § 87(2)(b)’s t-shirt with two hands, pushed § 87(2)(b) on his chest area against a five foot fence “real hard.” § 87(2)(b) stated that the fence was approximately 1.5 feet away when he was pushed. § 87(2)(b)’s back hit the fence. Det. Cohen told § 87(2)(b) “You black motherfucker, you better get into the van. Don’t worry about what you are being arrested for. You know what you did.” Later in the interview, § 87(2)(b) stated that PO Finnegan had told him, “Look, you black motherfucker, just get in the van. Don’t worry about what you are being charged with. You’ll find out what you’re getting charged with at the station.” § 87(2)(b) was placed inside of the white van.

When the van parked, the back doors of the van opened up. When the doors opened, the officers put § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) into the van. Somehow the officers got into

his house. § 87(2)(b) was later told by his friends that the officers kicked his door in, entered into his house, and arrested everyone. § 87(2)(b)'s friends did not tell him anything more about what happened except that the officers entered and when asked for a search warrant, said they did not have one.

Once everyone was in, the officers drove around for an hour or two before they were taken to the stationhouse. At the 75th Precinct stationhouse, everyone got out of the van and brought inside the building. At the stationhouse, he asked Sgt. White for the warrant since his door was kicked in. Det. White told § 87(2)(b) that he “did not need to face no one.” § 87(2)(b) had originally stated that he was told that the officers did not need a warrant. § 87(2)(b) asked PO Finnegan, Det. Friendly, and Det. Cohen for the search warrant, but they told § 87(2)(b) to ask Sgt. White. § 87(2)(b) was charged with possession of crack cocaine.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black male, who is 5'11" weighs 172 pounds, bald and has brown eyes.

Arrest Photograph

§ 87(2)(b) s arrest photograph shows no visible injuries (encl. 9a).

Phone Statement

§ 87(2)(b) called the investigator and provided a brief phone statement to the CCRB on November 23, 2011 (encl. 9b). § 87(2)(b) was inside of a room inside of § 87(2)(b). There were many people inside of the house, whose names § 87(2)(b) had as nicknames, but did not have their full names. § 87(2)(b) did not really see what was going on because he was inside of a room and therefore did not know exactly what happened. However, he heard a commotion of the police “rambling” through the house and kicking in doors. § 87(2)(b) opened the door and saw approximately four or five plainclothes officers. The officers were chasing some girl, whose name § 87(2)(b) did not know off-hand, and they could not find her and they got upset. The officers arrested everyone inside of the house. Six people were charged for selling crack and six people were charged with “stem” sells. Everyone was then transported to the 75th Precinct stationhouse. § 87(2)(b) did not mention the officers’ use of discourteous language.

Attempts to Contact Victims

- § 87(2)(b) alleged that his friend, § 87(2)(b) was stopped and frisked by police. However, he did not have an address or phone number for § 87(2)(b). The stop, question, and frisk logs and the command log had negative results for an individual named § 87(2)(b). “Please call” letters were mailed to each address on March 14 and March 21, 2012. An individual named John § 87(2)(b) responded to the letters he received and stated that no one by the name § 87(2)(b) resides at his address. None of the letters were returned by the United States Postal Service. Calls made between March 14 and March 22, 2012 yielded messages that a number associated with one of the addresses was in service.
- § 87(2)(b) also alleged that officers cursed, used physical force against, and threatened to use force against an unidentified black male prisoner. According to BADS, sixteen people were placed under arrest by the Narcotics field team, including § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) of which thirteen were black males. On November 23, 2011, the

undersigned checked the Department of Corrections website and verified that none of the men were incarcerated. From November 23, 2011 through March 21, 2012, the undersigned made efforts to contact the twelve remaining individuals who were placed under arrest via contact information found from the command log, phone calls from the Lexis Nexis searches and 411.com searches, DMV searches, 411.com searches, and Lexis Nexis searches. On November 25, 2011, § 87(2)(b) called the undersigned and he did not observe any incident at § 87(2)(b). On January 12, 2012, the undersigned received a call from § 87(2)(b) who told the investigator that he did not observe any incident. The undersigned was unable to reach § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b).

Attempts to Contact Witnesses

On November 16, 2011, the undersigned conducted a canvass in the immediate vicinity of § 87(2)(b) (encl. 10a). The undersigned entered the Maquea Supermarket, located at 880 New Lots Avenue, and ATB Taxi Company, located at 866 New Lots Avenue, and found no witnesses to the incident. The undersigned also left a “please call” letter at 876 New Lots Avenue.

NYPD Statements:

Subject Officer: DET. DENNIS FRIENDLY

- § 87(2)(b)-old black male, height 5’11”, weight 190 pounds, black hair and brown eyes.
- On August 1, 2011, Det. Friendly was assigned as the arresting officer. He worked with Sgt. Michael White and Det. Ronald Reynolds in a blue minivan from 2:27pm to 11:00pm. Det. Friendly was dressed in plainclothes.

Memo Book

Det. Friendly noted in his memo book that he arrested five people at the corner of Shepherd Avenue and New Lots Avenue at 6:50pm. Det. Friendly noted that § 87(2)(b) was arrested at the corner of Essex Street and Hegeman Avenue. Det. Friendly noted that § 87(2)(b) was arrested in front of 876 New Lots Avenue at 6:55pm (encl. 11a-11c).

OLBS Worksheets

Det. Friendly completed a UF-61 for § 87(2)(b) and § 87(2)(b). He wrote the following on § 87(2)(b)'s report, “At time, place, location, defendant was in possession of quantity of controlled substance. No phone call, No s.s.#. No phone number” (encl. 11d-11e). He wrote the following on § 87(2)(b)'s report, “At time, place, location, defendant was in possession of quantity of controlled substance. Defendant did resist arrest by fleeing the scene. No tattoos, no phone calls, no phone number, no nicknames” (encl. 11f-11h).

CCRB Testimony

Det. Friendly provided a statement to the CCRB on April 18, 2012 (encl. 11i-11k).

On August 1, 2011, at approximately 6:50pm, Det. Friendly, was doing observations on foot at a drug prone location, located at § 87(2)(b). This is an abandoned building, which was determined after searching “Property Shark” or other databases that the police department has access to. There would be no need for a search warrant to enter § 87(2)(b).

Det. Friendly observed a female, § 87(2)(b) § 87(2)(b) standing out of the doorway of § 87(2)(b) with the door open purchasing what appeared to be a white rocky substance in a

twist-top bag, which he determined to be crack-cocaine from an unknown black male that was standing on the steps of the building at the doorway. Det. Friendly did not stop any individual during his observations. At the time, Det. Friendly was at New Lots Avenue, between Shepherd Avenue and Berriman Street, approximately twenty-to-thirty feet away on the sidewalk. Sgt. White and Det. Reynolds were parked a couple of buildings down from his position, observing Det. Friendly from inside the vehicle. Det. Friendly approached the individuals, and identified himself as the police and pulled out his shield to let them know that he was an officer. § 87(2)(b) noticed that Det. Friendly was an officer; however, she did not recognize him until he was right in front of her. As Det. Friendly was going up the stairs, the dealer ran down the stairs, and he was not apprehended. As Det. Friendly was going into the building, § 87(2)(b) § 87(2)(b) slammed the “rickety wooden kind of door” on Det. Friendly, catching his arm and leg in the door.

Det. Friendly called for the assistance and Sgt. White and Det. Reynolds arrived in seconds and used their shoulders to push against the door in order to pry the door off between Det. Friendly’s leg and arm that was stuck because of the door. Either Sgt. White or Det. Reynolds had to kick the door because § 87(2)(b) § 87(2)(b) had placed something behind the door to prevent it from opening. Once the door was opened, Det. Friendly was the first to enter the location. Det. Friendly described the first floor apartment as a “shot gun” apartment going straight back once someone walks in. Det. Friendly stated that there was no door to the apartment.

Det. Friendly observed two males and one female inside the location. Det. Friendly also observed individuals, including § 87(2)(b) and Lavina § 87(2)(b) fleeing from the back window in the back bedroom. He then approached the back window and observed them fleeing in a southbound direction. Det. Friendly radioed the direction of flight for the rest of the field team and their descriptions. At that time, Det. Friendly could only identify the individuals by face, not by name, except for two individuals he knew by name as § 87(2)(b) and Lavina § 87(2)(b). Det. Friendly recovered narcotics, including crack pipes and unspecified drug paraphernalia called “push-its,” inside of § 87(2)(b) but he did not recall where they were recovered.

Det. Friendly exited the building while Sgt. White and Det. Reynolds remained inside with three arrested individuals. The prisoner van responded to the location to transport the arrest individuals. Once outside, Det. Friendly observed § 87(2)(b) without his shirt on. Det. Friendly approached him and placed him under arrest at the corner of Shepherd Avenue and New Lots Avenue. Det. Friendly was the only officer to arrest § 87(2)(b). Det. Friendly denied that he hit § 87(2)(b) with a set of handcuffs to the face. § 87(2)(b) was upset and agitated that he was being placed under arrest and asked Det. Friendly, “Why am I being arrested?” Det. Friendly told him the reason. § 87(2)(b) did not resist physically in any way. Det. Friendly brought § 87(2)(b) to the prisoner van and § 87(2)(b) did not want to enter. After going back and forth with Det. Friendly explaining that there was no other way he could be transported, § 87(2)(b) finally went inside the van. Det. Friendly denied that he or any member of his team slammed § 87(2)(b) against the van’s door and the bumper of the van.

Det. Friendly saw an unidentified civilian who told him that the individuals he was pursuing might be in his lot that was next to § 87(2)(b). The civilian did not want them in his lot and so he released his dog into the lot. When the civilian let his dog go causing the dog to bark, § 87(2)(b) exited the lot because he was afraid. Det. Friendly placed § 87(2)(b) in handcuffs, and § 87(2)(b) did not resist. § 87(2)(b) was the only individual in the lot. After § 87(2)(b)

§ 87(2)(b) was placed in handcuffs, his pedigree information was taken and he was brought to the prisoner van. There was no issue with placing § 87(2)(b) or the three civilians into the prisoner van.

At one point in the interview, Det. Friendly provided a different sequence of events stating that he first encountered the civilian who informed him of the fleeing individual in his lot. He received a transmission about a fleeing individual stopped at Essex Street and Hegeman Avenue, and returned to the front of § 87(2)(b) when he observed § 87(2)(b) and placed him under arrest. Det. Friendly stated that he then returned to the front of § 87(2)(b) at which point the civilian informant released his dog.

The officers assigned to the “chase car” also responded to § 87(2)(b) since they had detained § 87(2)(b) and brought him to Det. Friendly to verify that he was one of the individuals who had fled. Det. Friendly was not present during § 87(2)(b)'s apprehension. Det. Friendly denied that he or any member of his team called § 87(2)(b) a “black motherfucker.” § 87(2)(b) and the dealer were not apprehended. After the individuals were placed in the van, the team notified the undercover officers and the next set was set up. Det. Friendly denied that he or any member of his team punched any of the arrested individuals. Det. Friendly denied that he or any of his partners cursed at § 87(2)(b). Det. Friendly denied that he or any of his partners slapped § 87(2)(b) across the head. Det. Friendly denied that he or any of his partners threatened to “whoop” anyone’s ass.”

Det. Friendly went to the 75th Precinct stationhouse to complete arrest processing. Det. Friendly did not have any contact with the prisoners inside of the holding cell. Det. Friendly denied that he cursed at any individual in the holding cell or that anyone asked him for medical attention in that area.

Subject Officer: DET. RONALD REYNOLDS

- § 87(2)(b) -old white male, height 5'10", weight 210 pounds, bald and green eyes.
- On August 1, 2011, Det. Reynolds was assigned to assist the arresting officer, Det. Friendly. He worked Sgt. Michael White and Det. Dennis Friendly in a blue Kia minivan from 2:27pm to 11:00pm. Det. Reynolds was dressed in plainclothes.

Memo Book

Det. Reynolds noted that there was one arrest at § 87(2)(b) at 6:55pm (encl. 12a-12c).

CCRB Testimony

Det. Reynolds provided a statement to the CCRB on May 10, 2012 (encl. 12d-12f). His statement is generally consistent with Det. Friendly’s statement with exceptions noted in the text below.

As Det. Friendly walked to the entrance of § 87(2)(b) the individuals ran and he pursued them and they slammed the door on Det. Friendly, pinning his shoulder inside of the door. Det. Friendly’s leg might have also been caught. Det. Reynolds did not definitely know which individuals were running from Det. Friendly or why they were running from him. Det. Reynolds observed people running, but he could not positively identify them. Det. Reynolds could not say how many people were running. Det. Reynolds believed that he and Sgt. White observed the people running, and he did not believe Det. Friendly radioed why he was running after those people.

Det. Reynolds and Sgt. White ran up to help Det. Friendly. Det. Reynolds and Sgt. White put more force against the door on their side as oppose to the force the individuals were applying on

the opposite side of the door. The door flew open and Det. Friendly was freed. Once the door was open, Det. Reynolds observed numerous people running out of the back of the house through the windows. Det. Reynolds described the inside of the building as follows: there is a small hallway that opened up to an open floor plan with other doors off of it. There were doorways and doorframes, and although Det. Reynolds did not know if there were any doors, he noted nothing was closed, everything was open that he could see into every room. Det. Reynolds did not recall how many people fled out of the back window.

Det. Reynolds believed there were a few people-he did not recall how many- that stayed in the building, and they were brought together. The officers looked into each room quickly to make sure no one was hiding that could put their safety at risk. Once everything was clear, Sgt. White and Det. Reynolds remained with the people and waited for Det. Friendly to conduct his investigation. However, Det. Reynolds did not know what Det. Friendly did, if he went outside to radio the field team or if he conducted a canvass for the people who had fled. Det. Reynolds did not recall if any of the individuals inside of the house gave any resistance while they were being placed in handcuffs.

Det. Reynolds escorted the handcuffed individuals outside of the house as the prisoner van was already present. The individuals did not give any resistance as they were being placed inside of the van. Det. Reynolds did not recall if any individual was apprehended near § 87(2)(b). Det. Reynolds observed Det. Friendly outside of the house, but he did not know while he was in the building if Det. Friendly walked around the block or radioed the field team while he was in the building. Det. Reynolds did not recall if he observed Det. Friendly with any prisoner. After the individuals were placed in the van, the team went back on patrol.

The undersigned showed Det. Reynolds the photograph of § 87(2)(b) and he did not recognize him. The undersigned informed Det. Reynolds that § 87(2)(b) is alleging that prior to his arrest, police officers had stopped him and § 87(2)(b) and had frisked and searched § 87(2)(b). Det. Reynolds did not recall stopping § 87(2)(b) and it is not noted in his memo book. The undersigned showed Det. Reynolds the photograph of § 87(2)(b) and Det. Reynolds stated that they had arrested § 87(2)(b) before. Det. Reynolds denied that § 87(2)(b) asked him for a copy of the search warrant and had no idea if he asked another officer. The undersigned showed Det. Reynolds a photograph of § 87(2)(b) but Det. Reynolds said that he did not look familiar to him. Det. Reynolds denied that § 87(2)(b) was hit with a pair of handcuffs and that he was slammed against the van. Det. Reynolds denied that he or any member of his team made a racial slur against § 87(2)(b). Det. Reynolds denied he or any member of his team punched a prisoner or cursed at the prisoner. Det. Reynolds did not see any prisoner with injuries and he did not know if any prisoner asked for medical treatment. At the 75th Precinct stationhouse, Det. Reynolds did not have any contact with the prisoners. Det. Reynolds stated that he would have assisted the arresting officer with paperwork and processing property. Det. Reynolds denied that he or any of his partners threatened to use force against a prisoner or had cursed at a prisoner.

Witness Officer: SGT. MICHAEL WHITE

- § 87(2)(b) year-old black male, height 6'1", weight 210 pounds, black hair and brown eyes.
- On August 1, 2011, Sgt. White was assigned to team one. He worked with Det. Dennis Friendly and Det. Ronald Reynolds in a blue Kia minivan from 2:27pm to 11:00pm. Sgt. White was dressed in plainclothes.

Memo Book

Sgt. White noted in his memo book that there were five people under arrest inside of § 87(2)(b) at 6:50pm, including § 87(2)(b) and § 87(2)(b). Sgt. White noted that § 87(2)(b) was placed under arrest in front of 876 New Lots Avenue at 6:55pm (encl. 13a-13d).

CCRB Testimony

Sgt. White provided a statement to the CCRB on May 10, 2012 (encl. 13e-13g). His statement is generally consistent with Det. Friendly's statement with exceptions noted in the text below.

Sgt. White doubts that he escorted any prisoner into the prisoner van. Sgt. White might have brought the individuals to the van. Sgt. White did not recall if any prisoner was resisting in being placed inside of the prisoner van. Sgt. White believed § 87(2)(b) who was apprehended outside of the location at 876 New Lots Avenue had also jumped out of the window. Sgt. White did not apprehend § 87(2)(b). Sgt. White knew there was a canvass conducted for the other individuals who had fled. The undersigned showed Sgt. White a photograph of § 87(2)(b) and Sgt. White stated that § 87(2)(b) was apprehended inside of the location. Sgt. White did not hit § 87(2)(b) with the set of handcuffs and did not see any member of his team doing so. Sgt. White mentioned that everyone that was arrested offered no resistance. After the prisoners were placed in the van, the officers continued with their operations for the day.

The undersigned showed Sgt. White a photograph of § 87(2)(b) and Sgt. White stated did not interact with § 87(2)(b) at the stationhouse. Sgt. White stated that § 87(2)(b) did not ask him for a search warrant and stated that there would have been no search warrant for § 87(2)(b). The undersigned showed Sgt. White the photograph of § 87(2)(b) but Sgt. White did not recognize him. The undersigned explained to Sgt. White that § 87(2)(b) is alleging that prior to his arrest, he was stopped with his friend, § 87(2)(b) and that § 87(2)(b) was frisked and searched, Sgt. White denied it occurred. Sgt. White denied that he or any member of his team used any physical force against § 87(2)(b) to get him into the prisoner van, that a prisoner was punched, or that a prisoner was cursed at. Sgt. White did not hear Det. Friendly cursing at § 87(2)(b) or see any individual being smacked on the head. Sgt. White did not threaten to use force against any individual. Sgt. White did not see any individual being punched, threatened with the use of force, or cursed at the 75th Precinct stationhouse. Sgt. White did not observe any prisoner with injuries, or hear any prisoner complain of any injuries, and to the best of his knowledge no prisoner went to the hospital. No prisoner asked for medical treatment. Sgt. White did not hear any member of his team use a racial slur against § 87(2)(b) or see any officer slam § 87(2)(b) against the van.

Subject Officer: PO SEAN FINNEGAN

- § 87(2)(b) year-old white male, height 6'8", weight 320 pounds, brown hair and green eyes.
- On August 1, 2011, PO Finnegan was assigned to the prisoner van. He worked with Det. Jason Cohen in a white prisoner van from 2:27pm to 11:00pm. PO Finnegan was dressed in plainclothes.

Memo Book

PO Finnegan noted in his memo book an arrest at § 87(2)(b) at 7:00pm (encl. 14a-14b).

CCRB Testimony

PO Finnegan provided a statement to the CCRB on May 10, 2012 (encl. 14c-14d).

On August 1, 2011, at approximately 7:00pm, PO Finnegan and Det. Cohen, who were assigned to the prisoner van, in the general vicinity where Det. Friendly was going to conduct his investigation. Det. Friendly had placed a radio description of an individual who had fled from his location. PO Finnegan did not remember what the description was or the direction of flight. Det. Cohen and PO Finnegan, both observed an individual that fit Det. Friendly's description by their location. Det. Cohen and PO Finnegan stopped him and identified themselves as police officers. PO Finnegan informed the individual that he was being detained because he fit the description of a wanted individual. PO Finnegan did not recall specifically what the male had said once they identified themselves as police. The individual was not placed in handcuffs, and was placed in the van. PO Finnegan did not recall if the individual resisted while being placed in the van.

PO Finnegan and Det. Cohen drove the individual to Det. Friendly's location at § 87(2)(b) to see if in fact it was the person he was looking for. At § 87(2)(b) PO Finnegan observed several arrested individuals and Det. Friendly. PO Finnegan did not remember who else was present at § 87(2)(b). The individual was taken out of the van so that Det. Friendly could identify him. Det. Friendly identified the individual as the person he was looking for, and Det. Friendly placed the individual in handcuffs. PO Finnegan was not aware if the individual resisted as Det. Friendly was placing him in handcuffs. PO Finnegan did not remember if it was him or Det. Cohen who placed the individual inside of the van. The undersigned showed PO Finnegan the photographs of § 87(2)(b) and § 87(2)(b) and he did not recall specifically anything about them. No member of his team explained to PO Finnegan what happened at § 87(2)(b).

PO Finnegan denied that he or Det. Cohen pushed § 87(2)(b) and called him a racial slur. PO Finnegan did not remember any prisoners at § 87(2)(b) giving resistance to any member of his team. PO Finnegan denied that an individual was punched or cursed at. PO Finnegan denied that he or any member of his team hit § 87(2)(b) with a set of handcuffs or slammed him against the van. § 87(2)(b) did not ask PO Finnegan for a copy of the search warrant. PO Finnegan denied that he had thrown any prisoner inside of the van or slammed any prisoner against the van. PO Finnegan did not smack any prisoner or threatened any prisoner with the use of force. No prisoner asked PO Finnegan for medical treatment. PO Finnegan did not hear Det. Friendly say to the prisoner that he was going to "whoop" anyone's "ass" and "Shut the fuck up." He did not see Det. Friendly punch any prisoner.

Subject Officer: DET. JASON COHEN

- § 87(2)(b) -year-old white male, height 5'9", weight 200 pounds, bald and hazel eyes.
- On August 1, 2011, Det. Cohen was assigned to the prisoner van. He worked with PO Sean Finnegan in a white prisoner van from 2:27pm to 11:00pm, plus overtime. Det. Cohen was dressed in plainclothes.

Memo Book

Det. Cohen noted that he pick-up five arrests at the corner of Shepherd Avenue and New Lots Avenue at 6:55pm. Det. Cohen noted that he picked-up one individual at § 87(2)(b) at 7:00pm (encl. 15a-15b).

CCRB Testimony

Det. Cohen provided a statement to the CCRB on May 23, 2012 (encl. 15c-15e). His statement is generally consistent with PO Finnegan's statement with exceptions noted in the text below.

Det. Cohen and PO Finnegan received a radio transmission from Det. Friendly stating he observed a drug sale or drug transaction and to move in. Det. Cohen was not sure about specific descriptions given over the radio and stated that Det. Friendly basically said to move into that location. Det. Cohen was not sure if there was another perpetrator that may have fled the scene. The prisoner van is not close to the set, and are a couple of blocks away. Therefore, it would take them some time (approximately three to four minutes) to arrive at the location. By the time, Det. Cohen arrived there are five people arrested already by Shepherd Avenue and New Lots Avenue, which is close proximity to § 87(2)(b). Det. Cohen did not remember where they were prior to coming to Shepherd Avenue and New Lots Avenue since he does not have it notated. Det. Cohen denied that he or PO Finnegan made a racial slur against § 87(2)(b). Det. Cohen did not push § 87(2)(b) against the wall or fence.

When Det. Cohen arrived at the location, he saw Det. Friendly, Det. Reynolds, possibly Sgt. White, present at the scene. The five arrestees were already in handcuffs, and Det. Cohen did not remember if they were male or female. Det. Cohen placed the five individuals inside of the van. Det. Cohen initially stated that he was not sure if there was any prisoner giving trouble getting inside the van, but then stated that there was a prisoner that gave some sort of physical resistance while getting into the van, but he did not recall the name. The undersigned showed Det. Cohen the photographs of § 87(2)(b) and § 87(2)(b) and Det. Cohen stated that he thinks it might have been § 87(2)(b) but he was not really sure, but § 87(2)(b)'s face did look familiar. Det. Cohen did not know if the individual wanted to get in the van or not, but Det. Cohen was not certain. PO Finnegan might also have been escorting prisoners into the van. Det. Cohen did not observe any injuries on the prisoners or hear them complain of any injuries.

Approximately five minutes later, Det. Cohen and PO Finnegan were told to pick up another arrestee at § 87(2)(b). Det. Cohen did not observe any officer hit § 87(2)(b) with a set of handcuffs. Det. Cohen did not slam § 87(2)(b) against the door of the prisoner van and did not observe any officer doing so. Det. Cohen did not throw § 87(2)(b) and § 87(2)(b) into the van or observe any officer doing so. Det. Cohen denied that he or any of his partners punched an unidentified prisoner. Det. Cohen denied that he or any of his partners cursed at § 87(2)(b) and at the unidentified prisoner. Det. Cohen denied that he or any of his partners slapped any prisoner on the head. Det. Cohen did not observe Det. Friendly threaten a prisoner with the use of force or punch a prisoner.

After 7:00pm, Det. Cohen and PO Finnegan drove to another set. Det. Cohen eventually went to the 75th Precinct stationhouse. At the stationhouse, Det. Cohen's duties in regards to the prisoners would be arrest processing, getting the prisoners into the cells, completing and printing

paperwork, and getting the prisoners ready to bring them to Central Booking. It usually would be the officers assigned to the prisoner van that would have interactions with the prisoners in the holding cell. However, on the date of the incident, the team had sixteen prisoners and so the officers from the prisoner van would have received help from other members of the team. No prisoner in the holding cell asked Det. Cohen or any of his partners for medical treatment.

NYPD Documents

Stop, Question, and Frisk Log

- The stop, question, and frisk log had no result for § 87(2)(b) or for the incident location (encl. 16a-16r).

Narcotics Brooklyn North-Tactical Plan

- According to the tactical plan for tour 2:27pm to 11:00pm, Sgt. White, Det. Friendly, and Det. Reynolds were assigned to “team leader” in a blue Kia. Det. Cohen and Det. Finnegan were assigned to the prisoner van in a white van. Det. Adrian Chatman and Det. Michelle Martinez were assigned to “team one” in a green vehicle (encl. 16s).

75th Precinct Command Log

- The command log had no entry for § 87(2)(b) (encl. 16t-16dd).
- The command log noted that there were sixteen individuals arrested by Det. Friendly, who were logged in the command log at 9:10pm. According to the command log, Det. Friendly arrested § 87(2)(b) at the corner of Shepherd Avenue and New Lots Avenue at 6:50pm. § 87(2)(b)'s physical/mental condition was apparently normal. Det. Friendly arrested § 87(2)(b) at the corner of Essex Street and Hegeman Avenue at 6:50pm. § 87(2)(b)'s physical/mental condition was apparently normal. Det. Friendly also arrested § 87(2)(b) in front of 876 New Lots Avenue. § 87(2)(b)'s physical/mental condition was apparently normal (encl. 16z).
- All of the sixteen individuals' physical/mental condition was apparently normal. All of the sixteen prisoners were taken to Brooklyn Central Booking at 3:00am with Det. Cohen and PO Finnegan (encl. 16y-16aa).

Arrest Photographs

- The undersigned received negative results for an arrest photograph for § 87(2)(b) and § 87(2)(b) (encl. 27q-27r).
- The arrest photographs of § 87(2)(b) and § 87(2)(b) have no visible injuries (encl. 17a-17h). The photograph of § 87(2)(b) depicts a black male with a bandage on the outer corner of his left eye (encl. 17i).

§ 87(2)(b), § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on November 15, 2011, claiming false arrest, unlawful imprisonment, emotional distress, pain and suffering, and trauma. There was no amount disclosed as to the amount § 87(2)(b) is seeking from his lawsuit (encl. 23a-23f).
- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of January 18, 2013 with regard to the incident (encl. 23g).

§ 87(2)(b)

[illegible]

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Civilians CCRB History

- § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- This is the first CCRB complaint filed by § 87(2)(b) [REDACTED] (encl. 2b).
- § 87(2)(b) [REDACTED]
- This is the first CCRB complaint involving § 87(2)(b) [REDACTED] (encl. 2d).

Subject Officers CCRB History

- Det. Dennis Friendly has been a member of the service for ten years and there are four substantiated CCRB allegations against him. Det. Friendly received command B discipline for a physical force allegation, an entry allegation, and a refusal to provide name and shield number allegation in CCRB case number 201001417. He received no disciplinary action for a threat of arrest allegation in the same case number (encl. 1a-1c).
- Det. Ronald Reynolds has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 1d-1e).
- PO Sean Finnegan has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 1f).
- Det. Jason Cohen has been a member of the service for thirteen years and there are no substantiated CCRB allegations against him (encl. 1g).

Conclusion

Identification of Subject Officers

- Det. Friendly acknowledged that he handcuffed § 87(2)(b). Therefore, allegation A was pled against him.
- Since Det. Reynolds was identified by § 87(2)(b) by name, allegations B, C, and D were pled against him.
- Since § 87(2)(b)'s description of a white male standing at 6'5" matches closely to PO Finnegan's description of a white male standing at 6'8", allegation E was pled against him.
- Since § 87(2)(b) identified Det. Friendly by name, allegations F, G, and K were pled against him.
- Since § 87(2)(b) alleged that multiple officers used physical force against an individual, allegation H was pled against "officers."
- Since § 87(2)(b) identified PO Finnegan by name and PO Finnegan was partnered with Det. Cohen in the prisoner van, allegations I and J were pled against them.

Allegation Not Pled

§ 87(2)(b) alleged that police officers entered his residence, but he was not present during the entry. In addition, there are no witnesses to the entry. Although Det. Friendly admits to have entered the residence, he was in hot pursuit of a fleeing suspect. Therefore, the entry allegation was not pled.

Investigative Findings and Recommendations

Allegation A: Vicinity of § 87(2)(b) in Brooklyn, Det. Dennis Friendly struck § 87(2)(b) with a blunt instrument.

§ 87(2)(b) alleged that Det. Friendly used his handcuffs to strike him in the mouth. § 87(2)(b) then stated that Det. Friendly handcuffed him and then took a "sweat rag" or towel and put the handcuffs in between the towel and swung it at him making contact with at the base of his eye and nose. § 87(2)(b) claimed that he sustained swelling as a result of Det. Friendly hitting him with the handcuffs, but did not seek medical attention because it was not severe. The

§ 87(2)(b), § 87(2)(g)

_____.

Allegation B: Vicinity of § 87(2)(b) in Brooklyn, Det. Ronald Reynolds stopped § 87(2)(b)

Allegation C: Vicinity of § 87(2)(b) in Brooklyn, Det. Ronald Reynolds frisked § 87(2)(b)

As noted in the attempts to contact victims section, all efforts to contact § 87(2)(b) yielded negative results. § 87(2)(g)

Allegation D: At § 87(2)(b) in Brooklyn, Det. Ronald Reynolds spoke discourteously to § 87(2)(b)

Allegation E: At § 87(2)(b) in Brooklyn, PO Sean Finnegan spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Det. Reynolds and PO Finnegan told him, “I don’t give a shit” while he was being placed inside of the prisoner van. The officers denied cursing at any individual during the incident. § 87(2)(b) testified that at the time the discourtesy was said, Det. Reynolds, PO Finnegan, and approximately eight or nine male prisoners were present. However, § 87(2)(b) and § 87(2)(b) were not present during the discourtesy since they were not placed under arrest yet. None of the other potential witnesses contacted the CCRB and § 87(2)(b) and § 87(2)(b) did not observe any incident. § 87(2)(b), § 87(2)(g)

Allegation F: At § 87(2)(b) in Brooklyn, Det. Dennis Friendly spoke discourteously to § 87(2)(b) and to an individual.

§ 87(2)(b) alleged that Det. Friendly cursed at him when he was being rearranged in the prisoner van. § 87(2)(b) also alleged that Det. Friendly cursed at an unidentified individual. § 87(2)(b) did not mention any discourtesies in his initial complaint narrative. All the officers interviewed in this case denied that they cursed at any of the prisoners. § 87(2)(b) and § 87(2)(b) did not mention any discourtesies at the time they were being placed in the van. § 87(2)(b), § 87(2)(g)

Allegation G: At § 87(2)(b) in Brooklyn, Det. Dennis Friendly used physical force against § 87(2)(b)

§ 87(2)(b) alleged that Det. Friendly smacked him on his head and threw him up against the van. § 87(2)(b) alleged that he received a bruise to his left cheek after being thrown against the door of the van. § 87(2)(b) and § 87(2)(b) did not mention the allegations. Det. Friendly and his partners denied the allegations. § 87(2)(g)

Allegation H: At § 87(2)(b) in Brooklyn, officers used physical force against an individual.

Allegation K: At the 75th Precinct stationhouse, Det. Dennis Friendly threatened to use force against an individual.

As noted in the attempts to contact victims section, all efforts to identify the victim were unsuccessful. § 87(2)(g)

Allegation I: At Hegeman Avenue and Shepherd Avenue in Brooklyn, PO Sean Finnegan made remarks to § 87(2)(b) based upon race.

Allegation J: At Hegeman Avenue and Shepherd Avenue in Brooklyn, Det. Jason Cohen made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that PO Finnegan and Det. Cohen called him a “black motherfucker.” § 87(2)(b) was alone at the time of the encounter. PO Finnegan and Det. Cohen a denied that they said a racial slur to § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Team: One

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date